

SENATE No. 1249

The Commonwealth of Massachusetts

PRESENTED BY:

Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting body size discrimination.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>9/8/2025</i>

SENATE No. 1249

By Ms. Rausch, a petition (accompanied by bill, Senate, No. 1249) of Rebecca L. Rausch for legislation to prohibit body size discrimination. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1108 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting body size discrimination.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 89 of chapter 71 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the word “identity,” in lines 98 and 349, in
3 each instance, the following words:- “height or weight,”.

4 SECTION 2. Section 5 of chapter 76 of the General Laws, as appearing in the 2022
5 Official Edition, is hereby amended by inserting after the word “identity,” in line 11, the
6 following words:- “height or weight,”.

7 SECTION 3. Section 12B of said chapter 76, as so appearing, is hereby amended by
8 inserting after the word “identity,” in line 196, the following words:- “height or weight,”.

9 SECTION 4. Section 3 of chapter 151B of the General Laws, as appearing in the 2022
10 Official Edition, is hereby amended by inserting after the word “identity,” in lines 17 and 64, in

each instance, the following words:- “height or weight, unless for the purposes of compliance with any established state, federal, or industry safety standard,”.

SECTION 5. Section 4 of said chapter 151B, as so appearing, is hereby amended by inserting after the word “identity,” in lines 3, 187, 202, 210, 221, 230, 264, 291, 298, 309, 359, 367, 377, 477, 488, 493, 500, 633, 644, 655, 821, and 831 in each instance, the following words:- “height or weight, unless for the purposes of compliance with any established state, federal, or industry safety standard,”.

SECTION 6. Section 2 of chapter 151C of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after the word “race,” in lines 5 and 18, in each instance, the following words:- “height or weight,”.

SECTION 7. Section 2A of said chapter 151C, as so appearing, is hereby amended by inserting after the word “race,” in lines 9 and 15, in each instance, the following words:- “height or weight,”.

SECTION 8. Section 2 of chapter 151E of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after the word “sex,” in lines 14 and 22, in each instance, the following words:- “height or weight, unless for the purposes of compliance with any established state, federal, or industry safety standard,”.

SECTION 9. Section 92A of chapter 272 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after the word “identity,” in line 10, the following words:- “height or weight, unless for the purposes of compliance with any established state, federal, or industry safety standard,”.

32 SECTION 10. Section 98 of said chapter 272, as so appearing, is hereby amended by
33 inserting after the word “identity,” in line 3, the following words:- “height or weight, unless for
34 the purposes of compliance with any established state, federal, or industry safety standard,”.